



United States
Attorney's Office
Eastern District of Michigan



Home Health Care Provider To Pay \$334,807 To Settle False Claims Act Allegations

Friday, July 11, 2025

For Immediate Release

U.S. Attorney's Office, Eastern District of Michigan

DETROIT - United States Attorney Jerome F. Gorgon Jr. announced today that M&Y Care, LLC (M&Y Care) agreed to pay a total of \$334,807.20 to the United States and the State of Michigan to resolve allegations that it violated the False Claims Act.

M&Y Care provides a variety of home health care services to Michigan patients, including personal care. Its principal place of business is in West Bloomfield, Michigan. The settlement announced today resolves allegations that M&Y Care caused the Medicare and Medicaid Programs to be billed for services provided by staff who lacked the requisite qualifications during the period of January 1, 2015, through December 31, 2023. Specifically, the United States contends that M&Y Care improperly billed the Medicare and Medicaid Programs using Current Procedural Terminology (CPT) code G0156 for services provided by individuals who were insufficiently trained. When properly used, this CPT code pertains to the services of a home health aide under a home health plan of care. The United States alleges that Defendant should have billed for non-skilled care, instead of billing and being paid for services under CPT code G0156. The non-skilled care rate was about 74% lower than the reimbursement rates for CPT code G0156.

The civil settlement includes the resolution of claims brought under the *qui tam* or whistleblower provisions of the False Claims Act, in the case captioned *United States and the State of Michigan ex rel. DeCarlo v. M&Y Care, LLC, et al.*, Case No. 19-11032 (E.D. Mich.). Under the False Claims Act, a private party can file an action on behalf of the United States and receive a portion of any recovery.

The resolution obtained in this matter was the result of a coordinated effort among the United States Attorney's Office for the Eastern District of Michigan, the U.S. Department of Health and Human Services - Office of the Inspector General, and the Michigan Attorney General's Health Care Fraud

Division. The matter was handled by Assistant United States Attorney John Postulka from the U.S. Attorney's Office for the Eastern District of Michigan.

The investigation and resolution of this matter illustrate the government's emphasis on combating health care fraud. One of the most powerful tools in this effort is the False Claims Act. Tips and complaints from all sources about potential fraud, waste, abuse, and mismanagement can be reported to the U.S. Department of Health and Human Services at 800-HHS-TIPS (800-447-8477).

The claims resolved by the settlement are allegations only; there has been no determination of liability.

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